

Hearing to confirm final distribution of funds, including deposit of any unclaimed funds, is set for **September 2, 2027, at 8:30 a.m.** A declaration confirming compliance, including confirmation of final disposition of the unclaimed proceeds to the State Controller, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

MIDLAND CREDIT MANAGEMENT INC. v. VIVIAN SHAW
Case No. CL25-10935

Defendant's Motion to Compel Further Responses to Discovery and Requests for Sanctions

TENTATIVE RULING:

Defendant's unopposed motion to to compel further responses to discovery from Plaintiff MIDLAND CREDIT MANAGEMENT is DENIED IN PART and GRANTED IN PART.

As to Special Interrogatories Nos 1 and 5, the motion is DENIED. As to Special Interrogatory No. 6, the motion is GRANTED.

As to Plaintiff's responses to the Request for Production of Documents, Plaintiff failed to timely respond to the discovery and waived objections. Plaintiff shall respond to the Request for Production (Set One) without objection.

As to the Requests for Admission, the motion is denied. The terminology used by Plaintiff in RFA No. 2 is objectionable and vague.

Plaintiff's amended discovery responses are due 20 days from service of notice of entry of this order.

The court declines to award sanctions as to Plaintiff's motion to compel further responses to the request for production of documents as Defendant's motion is unopposed. (See CCP § 2031.300(c) (requests for production).) As to the special interrogatories, circumstances make imposition of sanctions unjust.

JAIME O ADVIENTO v NORMA R WATSON
Case No. CL25-11340

Defendant NORMA WATSON's Motion to Set Aside Default

TENTATIVE RULING:

A proof of service filed January 22, 2026, reflects personal service of the summons and complaint on Defendant NORMA R. WATSON by registered process server Carlo Perez on Saturday, December 10, 2025 at 4:00 p.m.

On January 16, 2026, a request for entry of default was mailed to NORMA R. WATSON by Carlo Perez. Default was entered by the clerk on January 22, 2026.

On behalf of NORMA WATSON, through her attorneys-in-fact, counsel moves to set aside the default on the basis that WATSON suffers from cognitive impairments that affected her ability to understand that she was being sued and therefore deprived her of “notice.” (Notably, this assertion is not supported by any medical evidence, and is further undermined by her signature on the power of attorney on March 9, 2026. If WATSON was cognitively incapacitated on December 10, 2025, it would seem she would be incapacitated on March 9, 2026 and not capable of consenting to a power of attorney.)

Code of Civil Procedure section 473(b) allows relief from entry of default upon motion for “mistake, inadvertence, surprise or excusable neglect.” Motions for such relief must be filed within 6 months of the default. 6 months or 180 days from January 22, 2026, was July 22, 2026. The motion to set aside the default was not filed until July 28, 2026 and is untimely.

The six month deadline provided by Code of Civil Procedure section 473(b) is mandatory and jurisdictional. (*Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; *Arambula v Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340.) Because the summons and complaint was personally served by a registered process server, Code of Civil Procedure section 473.5(a)(i) does not apply.

The motion to set aside the default is DENIED.

FERNANDEZ v. DOUBLE TREE BY HILTON HOTEL & SPA, et al.
Case No. CU25-09875

Motion by Defendant BUTTERFLY EFFECT HOTELS, LLC to Compel Arbitration

TENTATIVE RULING:

Defendants’ motion to compel arbitration is DENIED.

Existence of Agreement to Arbitrate

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm’t, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a